IN THE NATIONAL COMPANY LAW TRIBUNAL

PRINCIPAL BENCH AT NEW DELHI

Company Application No. CA (CAA)-01(PB)/2021

Section 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamation) Rules, 2016.

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

RELIGARE COMTRADE LIMITED

Transferor Company 1/ Applicant Company 1

AND

RELIGARE INSURANCE LIMITED

Transferor Company 2/ Applicant Company 2

AND

RELIGARE ADVISORS LIMITED

Transferor Company 3/ Applicant Company 3

AND

RELIGARE BUSINESS SOLUTIONS LIMITED

Transferor Company 4/ Applicant Company 4

WITH

RELIGARE ENTERPRISES LIMITED

Transferee Company / Applicant Company 5

AND

Their respective Shareholders

Order Pronounced on: 21.12.2021

CORAM

BHASKARA PANTULA MOHAN,
HON'BLE MEMBER (JUDICIAL)
HEMANT KUMAR SARANGI,
HON'BLE MEMBER (TECHNICAL)

PRESENT

For the Applicants: Krishnendu Dutta, Sr. Advocate, Mr. Abhishek Nahta, CA

MEMO OF PARTIES

RELIGARE COMTRADE LIMITED
A public limited company incorporated under the provisions of the Companies Act, 1956 on 24th June 2010 bearing corporate identification number U51398DL2010PLC351554 and having its registered office at 1st Floor, P-14 45/90, P Block, Connaught Place, New Delhi - 110001.

Transferor Company 1/
Applicant Company 1/ RCTL

AND

RELIGARE INSURANCE LIMITED
A public limited company incorporated under the provisions of the Companies Act, 2013 on 21st July 2016 and bearing corporate identification number of U66000DL2016PLC314320 and having its registered office at 1st Floor, P-14 45/90, P Block, Connaught Place, New Delhi - 110001.

Transferor Company 2/
Applicant Company 2/ RIL

AND

RELIGARE ADVISORS LIMITED
Formerly known as Religare Wealth Management Limited is a public limited company incorporated under the provisions of the Companies Act, 1956 on 15th March 2007 and bearing corporate identification number of U74999DL2007PLC160580 and having its registered office at 1st Floor, P-14 45/90, P Block, Connaught Place, New Delhi - 110001

Transferor Company 3/

Applicant Company 3/ RAL

AND

RELIGARE BUSINESS SOLUTIONS LIMITED
A public limited company incorporated under the provisions of the Companies Act, 2013 on 20th October 2016 and bearing corporate identification number of U74999DL2016PLC343914 and having its registered office at 1st Floor, P-14 45/90, P Block, Connaught Place, New Delhi - 110001

Transferor Company 4/
Applicant Company 4/ RBSL

AND

RELIGARE ENTERPRISES LIMITED
A public limited company incorporated under the provisions of the Companies Act, 1956 on 30th January 1984 bearing corporate identification number of L74899DL1984PLC146935 and having its registered office at 1st Floor, P-14 45/90, P Block, Connaught Place, New Delhi - 110001.

Transferee Company /
Applicant Company 5/ REL

ORDER

PER- HEMANT KUMAR SARANGI, MEMBER (TECHNICAL)

1. This is an application filed by the applicant companies above named, under Sections 230-232 and other applicable provisions of the Companies Act, 2013 (for brevity 'The Act'), read with Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 (for brevity 'The Rules'), in relation to the Scheme of Amalgamation (for brevity the "SCHEME"), proposed among the applicants. In terms of Section 230 and 232 of

the 2013 Act following prayers have been made for orders:-

I. *Dispense with the requirement of convening the separate meetings of the Equity Shareholders of the Transferor Company 1 to 4 as all the Equity Shareholders of the Transferor Company 1 to 4 have given their consent in writing on affidavits for the scheme and the said dispensation;*

II. *Dispense with the requirement of convening the separate meetings of the Preference Shareholders of the Transferor Company 3 as all the Preference Shareholders of the Transferor Company 3 have given their consent in writing on affidavits for the scheme and the said dispensation;*

III. *Dispense with the requirement of convening the separate meetings of the Secured Creditors of the Transferor Company 1 to 4, as there are no Secured Creditors in Transferor Company 1 to 4;*

IV. *Dispense with the requirement of convening the separate meetings of the Unsecured Creditors of the Transferor Company 1, as the Unsecured Creditors*

representing 99.98 % of total outstanding amount of Unsecured Creditors of the Transferor Company 1 have given their consent in writing on affidavits for the said dispensation;

V. *Dispense with the requirement of convening the separate meetings of the Unsecured Creditors of the Transferor Company 2 to 4, as there are no Unsecured Creditors in Transferor Company 2 to 4;*

VI. *Dispense with the requirement of convening the separate meetings of the Equity and Preference shareholders of the Transferee Company on the ground that the scheme does not entail or involve any arrangement between the Transferee Company and its shareholders since all the Transferor Companies are wholly owned subsidiaries of the Transferee Company. Further, no new shares will be issued by the Transferee Company in lieu of the shares of the Transferor Companies and hence, there will be no change in the control and management of the Transferee Company. Therefore, the rights of the shareholders of the Transferee*

Company will not be affected in any manner whatsoever by the scheme.

Further, basis the audited financial statements of Transferor Companies and Transferee Company for the financial year ending March 31, 2019, the post-merger net-worth of Transferee Company would be positive of INR 16,55,03,74,569 as supported by the certificate issued by a chartered accountant. Hence, the proposed Scheme is in no way prejudicial to the interest of shareholders or shareholders and creditors of Transferee Company and Transferor Companies.

VII. *Dispense with the requirement of convening the separate meetings of the Secured Creditors of the Transferee Company, as there are no Secured Creditors in the Transferee Company;*

VIII. *Dispense with the requirement of convening the separate meetings of the Unsecured Creditors of the Transferee Company, as the Unsecured Creditors representing 99.45 % of total outstanding amount of Unsecured Creditors of the Transferee Company*

have given their consent in writing on affidavits for the said dispensation;

IX. *Dispense with the requirement of serving notice of the meeting to the Equity Shareholders, Secured Creditors and Unsecured Creditors of Applicant Companies and Preference Shareholders of the Transferee Company and Transferor Company 3 and all other connected activities and compliances related to the convening the meeting along with issuing advertisement in relation to such notice in at least one English newspaper and one vernacular newspaper;*

X. *Pass such other or further orders as this Hon'ble NCLT may deem fit and proper in the facts and circumstances of the present case.*

2. Affidavits in support of the application sworn for and on behalf the Applicant Company No.1 to 4 have been filed by Mr. Rajesh Sharma and on behalf of Applicant Company No.5 has been filed by Ms. Reena Jayara being the authorized representative(s) respectively.

3. It is represented that the Scheme does not contemplate any corporate debt restructuring exercise as provided under Section 230(2)(c) of the Act. Learned Counsel has taken us through the averments made in the application as well as the typed set of documents annexed there with. It is further represented that the application filed by the applicants is maintainable in view of Rule 3(2) of the Rules and Learned Counsel also represented that the registered offices of all the Applicant companies are situated within the territorial jurisdiction of this Bench of the Tribunal and fall within the domain of Registrar of Companies, NCT of Delhi.

4. It is represented that no director of the Applicant Companies has any material and / or adverse interests in the proposed Scheme of Amalgamation.

5. It is represented that as on the date of this Application, no investigation or proceedings under Companies Act, 2013 or the Companies Act, 1956 are pending against the Applicant Companies, except the order letter dated February 28, 2018 received by the Transferee Company from Serious Fraud Investigation Office ("SFIO"), Ministry

of Corporate Affairs ("MCA"), Government of India, intimating the Transferee Company that the MCA has ordered an investigation into the affairs of the Transferee Company by the SFIO. The Letter is issued only for seeking information from the Transferee Company. Further information has been sought by SFIO for Transferee Company and its subsidiaries through various communications thereafter, which is being provided.

6. It is represented that the proposed Scheme of Amalgamation will not adversely affect the rights of any of the shareholders, creditors, and other stakeholders of the Applicant Companies in any manner whatsoever and is not in any way prejudicial to any person. The Scheme is fair and reasonable and is not detrimental to the interest of the public.

7. It is represented that Applicant Companies have no sectoral regulators or authorities, other than the Central Government/Regional Director, Securities and Exchange Board of India (SEBI)/Stock Exchange, Reserve Bank of India, Registrar of Companies, the Income Tax

Authorities and the Official Liquidator which are relevant to serve a notice u/s 230(5) of the Act.

8. In relation to the Transferor Company 1 / Applicant Company No.1, it has been represented that company has NIL Secured creditors and 15 Unsecured creditors as on 30th June, 2020, out of which 5 Unsecured Creditors, representing 99.98% of the total value of Unsecured Creditors of the Transferor Company 1, have given their consent on affidavit, to dispense with the requirement of holding meeting of Unsecured Creditors, for the purpose of obtaining their approval to the proposed Scheme of Amalgamation. The Consent of the Un-Secured Creditor annexed as Annexure – 13A to the Company Scheme Application.

9. In relation to the Transferor Company 2 / Applicant Company No. 2, it has been represented that the company has NIL Secured Creditors and NIL Unsecured Creditors as on 30th June, 2020.

10. In relation to the Transferor Company 3 / Applicant Company No. 3, it has been represented that the

company has NIL Secured Creditors and NIL Unsecured Creditors as on 30th June, 2020.

11. In relation to the Transferor Company 4 / Applicant Company No. 4, it has been represented that the company has NIL Secured Creditors and NIL Unsecured Creditors as on 30th June, 2020.

12. In relation to the Transferee Company /Applicant Company No. 5, it has been represented that company has NIL Secured Creditors and 74(Seventy Four) Unsecured Creditors, as on 30TH June, 2020, out of which 7 Unsecured Creditor(s) representing 99.45% of the total value of Unsecured Creditors of the Transferee Company, have given their consent on affidavits to dispense with the requirement of holding meeting of Unsecured Creditors, for the purpose of obtaining their approval to the proposed Scheme of Amalgamation. The Consent of the Un-Secured Creditors annexed as **Annexure – 13B to the Company Scheme Application.**

13. The above application has been placed before us and this Tribunal proceeds to entertain the same. The registered offices of the Applicant Companies are situated within Delhi which are subject to the territorial jurisdiction of the Registrar of Companies, NCT of Delhi as well as that of this Tribunal.

14. We have perused the application and the connected documents filed along with the Scheme of Amalgamation contemplated between the Applicant Companies.

15. The Applicant Company 1 / Transferor Company 1 is a public limited company incorporated under the provisions of the Companies Act, 1956 on 24th June 2010 bearing corporate identification number U51398DL2010PLC351554. The Permanent Account Number (PAN) of Transferor Company 1 is AAECR8405P. The Registered office of Religare Comtrade Limited (RCTL), was earlier situated at 2nd Floor, Rajlok Building 24, Nehru Place, New Delhi -- 110019 which is changed to 1st Floor, P-14, 45/90, P Block, Connaught Place, New Delhi-110001 with effect from 13th May 2020. The share

capital structure of the Applicant Company No.1 / Transferor Company 1 as on 31.03.2019 is as follows:

Particulars	**Amount (INR)**
Authorized Share Capital	
3,80,00,000 Equity Shares of INR 10/- each	38,00,00,000
Total	**38,00,00,000**
Issued, Subscribed and Paid Up Share Capital	
3,71,26,712 Equity Shares of INR 10/- each fully paid up	37,12,67,120
Total	**37,12,67,120**

Since 1st April 2019 till the date of filing of the Application, there has been no change in the shareholding of the Company.

16. The Applicant Company 2 / Transferor Company 2 is a public limited company incorporated under the provisions of the Companies Act, 2013 on 21st July 2016 and bearing corporate identification number of U66000DL2016PLC314320. The Permanent Account Number (PAN) of Transferor Company 2 is AAHCR9671E. The Registered office of Religare Insurance Limited (RIL), was earlier situated at 2nd Floor, Rajlok Building 24, Nehru Place, New Delhi -- 110019 which is changed to

1st Floor, P-14, 45/90, P Block, Connaught Place, New Delhi-110001 with effect from 13th May 2020. The share capital structure of the Applicant Company No.2 / Transferor Company 2 as on 31.03.2019 is as follows:

Particulars	**Amount (INR)**
Authorized Share Capital	
5,000 Equity Shares of INR 10/- each	50,000
Total	**50,000**
Issued, Subscribed and Paid Up Share Capital	
5,000 Equity Shares of INR 10/- each fully paid up	50,000
Total	**50,000**

Since 1st April 2019 till the date of filing of the Application, there has been no change in the shareholding of the Company

17. The Applicant Company 3 / Transferor Company 3 is a public limited company incorporated under the provisions of the Companies Act, 1956 on 15th March 2007 and bearing corporate identification number of U74999DL2007PLC160580. The Permanent Account Number (PAN) of Transferor Company 3 is AADCR5677C. The Registered office of Religare Advisors Limited (RAL), was situated at 2nd Floor, Rajlok Building 24, Nehru

Place, New Delhi -- 110019 which is changed to 1st Floor, P-14, 45/90, P Block, Connaught Place, New Delhi-110001 with effect from 1st May 2020. The share capital structure of the Applicant Company No. 3 / Transferor Company 3 as on 31.03.2019 is as follows:

Particulars	**Amount (INR)**
Authorized Share Capital	
57,50,00,000 Equity Shares of INR 2/- each	1,15,00,00,000
2,20,00,000 8% Non-Cumulative Compulsorily Convertible Preference Share @ Rs. 3/- each	6,60,00,000
1,29,00,000 0.01% Redeemable Cumulative Non- Convertible Preference Share @ Rs.10/- each	12,90,00,000
5,00,000 Unclassified Preference Shares @ Rs. 10 each	50,00,000
Total	**1,35,00,00,000**
Issued, Subscribed and Paid Up Share Capital	
12,16,00,000 Equity Shares of INR 2/- each	24,32,00,000
1,29,00,000 0.01% Redeemable Cumulative Non- Convertible Preference Share @10 each	12,90,00,000
Total	**37,22,00,000**

Since 1st April 2019 till the date of filing of the Application, there has been no change in the share capital of Transferor Company 3.

18. The Applicant Company 4 / Transferor Company 4 is a public limited company incorporated under the provisions of the Companies Act, 2013 on 20th October 2016 and bearing the corporate identification number of U74999DL2016PLC343914. The Permanent Account Number (PAN) of Transferor Company 4 is AAHCR9671E. The Registered office of Religare Business Solutions Limited (RBSL), was situated at 2nd Floor, Rajlok Building 24, Nehru Place, New Delhi -- 110019 which is changed to 1st Floor, P-14, 45/90, P Block, Connaught Place, New Delhi-110001 with effect from 1st May 2020. The Registered office of RBSL was situated at 9th Floor, Sector 54, Golf Course, Gurgaon, Haryana, 122001 at the time of incorporation. The Registered office of RBSL has been shifted to 2nd Floor, Rajlok Building 24, Nehru Place, New Delhi – 110019 w.e.f. January 01,2019. Pursuant to shifting of registered office from one State to another, the Corporate Identification Number of RBSL has been changed from U74999HR2016PLC066155 to U74999DL2016PLC343914. The share capital structure

of the Applicant Company No. 4 / Transferor Company 4 as on 31.03.2019 is as follows:

Particulars	**Amount (INR)**
Authorized Share Capital	
2,50,000 Equity Shares of INR 10/- each	25,00,000
Total	**25,00,000**
Issued, Subscribed and Paid Up Share Capital	
40,000 Equity Shares of INR 10/- each fully paid up	4,00,000
Total	**4,00,000**

Since 1st April 2019 till the date of filing of the Application, there has been no change in the share capital of Transferor Company 4.

19. The Applicant Company 5 / Transferee Company is a public limited company incorporated under the provisions of the Companies Act, 1956 on 30th January 1984 bearing corporate identification number of L74899DL1984PLC146935. The Permanent Account Number (PAN) of Transferee Company is AAACV5888N. The Registered Office of the Religare Enterprises Limited (REL), was situated at 2nd Floor, Rajlok Building, 24, Nehru Place, New Delhi - 110019 which is changed to 1st Floor, P-14, 45/90, P Block, Connaught Place, New

Delhi-110001 with effect from 13th May 2020. The share capital structure of the Applicant Company No. 5 / Transferee Company as on 31.03.2019 is as follows:

Particulars	**Amount (INR)**
Authorized Share Capital	
65,44,50,000 Equity Shares of INR 10/- each	6,54,45,00,000
16,20,00,000 Redeemable Preference Shares of INR 10/- each	1,62,00,00,000
Total	**8,16,45,00,000**
Issued, Subscribed and Paid Up Share Capital	
21,69,42,733 Equity Shares of INR 10/- each	2,16,94,27,330
15,00,000 13.66% Cumulative Non-Convertible Redeemable Preference Shares of INR 10/- each	1,50,00,000
2,50,00,000 0.01% Non-Cumulative Non-Convertible Redeemable Preference Shares of INR 10/- each	25,00,00,000
Total	**2,43,44,27,330**

Since 1st April 2019 till December 18, 2019 (i.e. date of approval of the Scheme), the Transferee Company has issued 4,11,85,419 equity shares pursuant to the conversion of warrants and accordingly, the Issued, Subscribed and Paid Up Share Equity Capital has been

increased to Rs. 2,58,12,81,520 (comprising 25,81,28,152 equity shares of Rs. 10/- each).

Further, thereafter Transferee Company has issued 7,15,750 equity shares pursuant to the exercise of stock options under the Religare Enterprises Limited Employees Stock Option Plan 2019 and accordingly, the Issued, Subscribed and Paid Up Share Equity Capital has been increased to Rs. 258,84,39,020 (comprising 25,88,43,902 equity shares of Rs. 10/- each)

Hence, the present capital structure of Transferee Company is as below:

The share capital structure of the Applicant Company No. 5 / Transferee Company as on 30.06.2020 is as follows:

Particulars	**Amount (INR)**
Authorised Share Capital	
65,44,50,000 Equity Shares of INR 10/- each	6,54,45,00,000
16,20,00,000 Redeemable Preference Shares of INR 10/- each	1,62,00,00,000
Total	**8,16,45,00,000**
Issued, Subscribed and Paid Up Share Capital	

25,88,43,902 Equity Shares of INR 10/- each	258,84,39,020
15,00,000 13.66% Cumulative Non-Convertible Redeemable Preference Shares of INR 10/- each	1,50,00,000
2,50,00,000 0.01% Non-Cumulative Non-Convertible Redeemable Preference Shares of INR 10/- each	25,00,00,000
Total	**2,85,34,39,020**

20. The companies have filed their Memorandum and Articles of Association, as well as the last available audited financial statements as on March 31, 2020. The appointed date as specified in the Scheme is April 01, 2019 subject to the directions of this Tribunal.

21. The Board of Directors of the Applicant Companies vide meeting held on 18th December 2019 has unanimously passed resolutions and approved the proposed Scheme of Amalgamation as contemplated above and copies of the resolutions have also been placed on record by the Companies.

22. Taking into consideration the application and the documents filed therewith, we propose to issue the following directions with respect to calling, convening and holding of the meetings of the Shareholders, Secured and

Unsecured Creditors or dispensing with the same which are as follows: -

A. **In relation to the Applicant Company No. 1 / Transferor Company 1:**

i. With respect to Equity Shareholders the holding of meeting is dispensed with as consent affidavits of all the Equity Shareholders have been placed on record.

ii. The meeting of Secured Creditors is also dispensed with as there are no Secured Creditors.

iii. The meeting of Unsecured Creditors is also dispensed with as the consent of Un-Secured Creditors having 99.98% in value have been obtained on affidavits seeking dispensation.

B. In relation to the Applicant Company No. 2 / Transferor Company 2:

i. With respect to the Equity Shareholders the holding of meeting is dispensed with as consent affidavits of all the Equity Shareholders have been placed on record.

ii. The meeting of Secured Creditors is also dispensed with as there are no Secured Creditors.

iii. The meeting of Secured Creditors is also dispensed with as there are no Un-Secured Creditors.

C. In relation to the Applicant Company No. 3 / Transferor Company 3:

i. With respect to the Equity Shareholders the holding of meeting is dispensed with as consent affidavits of all the Equity Shareholders have been placed on record.

ii. With respect to the Preference Shareholders the holding of meeting is

dispensed with as consent affidavits of all the Preference Shareholders have been placed on record.

iii. The meeting of Secured Creditors is also dispensed with as there are no Secured Creditors.

iv. The meeting of Un-Secured Creditors is also dispensed with as there are no Un-Secured Creditors.

D. In relation to the Applicant Company No. 4 / Transferor Company 4:

i. With respect to the Equity Shareholders the holding of meeting is dispensed with as consent affidavits of all the Equity Shareholders have been placed on record.

ii. The meeting of Secured Creditors is also dispensed with as there are no Secured Creditors.

iii. The meeting of Un-Secured Creditors is also dispensed with as there are no Un-Secured Creditors.

E. In relation to the Applicant Company No. 5 / Transferee Company:

i. With respect to the Equity and Preference Shareholders the holding of meeting is dispensed without obtaining the consent letter on the ground that the scheme does not entail or involve any arrangement between the Transferee Company and its shareholders since all the Transferor Companies are wholly owned subsidiaries of the Transferee Company. Further, no new shares will be issued by the Transferee Company in lieu of the shares of the Transferor Companies and hence, there will be no change in the control and management of the Transferee Company. Therefore, the rights of the shareholders of the

Transferee Company will not be affected in any manner whatsoever by the scheme.

Further, basis the audited financial statements of Transferor Companies and Transferee Company for the financial year ending March 31, 2019, the post-merger net-worth of Transferee Company would be positive of INR 16,55,03,74,569 (INR One Thousand Six Hundred Fifty Five Crore Three Lakh Seventy Four Thousand Five Hundred Sixty Nine) as supported by the certificate issued by a chartered accountant annexed as Annexure 7H of the Company Application. Hence, the proposed Scheme is in no way prejudicial to the interest of shareholders or shareholders and creditors of Transferee Company and Transferor Companies.

In support of the above submission, the Applicants has placed the reliance on following decisions:

- *Ambuja Cements Limited under CA (AT) No. 19 of 2021 decided on 06th April 2021 (arising out of order dated 10th December, 2020 passed by NCLT, Ahemdabad Bench in CA (CAA) No. 50 of 2020.*
- *DLF Limited & Others under CA (AT) No. 180 of 2019 decided on 19th August 2019 by NCLAT read with CA (CAA) 741/2019 with CA (CAA) No. 39/Chd/Hry/2018 decided on 21st November 2019.*
- *Jaisingh Wires Private Limited & Others with Polycab Wires Private Limited. under CA (M) No. 138 of 2015 decided on 11th September 2015.*

- *Century Seeds Private Limited with HM. Clause India Private Limited under CA (M) No. 36 of 2015 decided on 5th May 2015.*
- *Navratra Vinimay Private Limited & Anr under CP No. 224 of 2014 decided on 22nd July 2014.*
- *AAA Township Private Limited & Others with Delta Corp Limited under CA (M) No. 89 of 2014 decided on 14th February 2014.*
- *Emeter India Private Limited with Siemens Technology and Services Private Limited under CA (M) No. 179 of 2012 decided on 16th January 2013.*
- *Auto Tools India Private Limited with Auto Tools Private Limited under CA (M) No. 41 of 2010.*
- *Sharat Hardware Industries Private Limited (1978) Company Case 23 (Delhi).*

- *Mahaamba Investments Ltd. with IDI Limited (2001) 105 Company Case 16 (Bombay).*
- *Andhra Bank Housing Finance Ltd. (2004) 118 Company Case 295(Andhra Pradesh).*
- *Mahindra Forgings Global Limited & others and Mahindra CIE Automotive Limited, 2017 SCC Online NCLT 11936*
- *Berkeley Design Automation India Private Limited and Mentor Graphics (India) Private Limited, 2017 SCC Online NCLT 7177;*
- *Godrej Real Estate Private Limited and Godrej Properties Limited, 2017 SCC Online NCLT 12804;*
- *Tech Mahindra Limited, 2017 SCC Online NCLT 12924;*
- *Equator Trading Enterprises Private Limited & others and TV18 Broadcast Limited, CSA No. 132 of 2018;*

- *Digital 18 Media Limited & others And Network18 Media & Investments Limited, CSA No. 123 of 2018;*
- *ICICI bank Limited, 2002(2) Mh.L.J.*
- *M/s. Necia Builders & Developers Private Limited & others with M/s DLF*
- *Retail Developers Limited, Company Petition No. 68 of 2009, order dated 28.05.2009; and*
- *Aditya Birla Money Mart Limited, Company Application No. 424 of 2016, date of order 28.09.2016.*

Based on the above judgments, relevant clauses and the positive net worth position of the Transferee Company, the meeting of convening the meetings of the Equity Shareholders and Preference Shareholders of the Transferee Company is also dispensed with.

ii. The meeting of Secured Creditors is also dispensed with because there are no Secured Creditors.

iii. The meeting of Unsecured Creditors is also dispensed with as the consent of Unsecured Creditors having 99.45% in value have been obtained on affidavits seeking dispensation.

23. Notice of the application shall also be served on the, **Regional Director**, Northern Region, Ministry of Corporate affairs, B-2 Wing, 2nd Floor, Paryavaran Bhawan, CGO Complex, New Delhi-110003, Registrar of Companies, NCT of Delhi at 4th Floor, IFCI Tower, 61, Nehru Place, New Delhi-110019, **the official Liquidator**, Lok Nayak Bhawan, 8th Floor, Khan Market, New Delhi-110001, the office of the **Income Tax Department**, through the Income Tax Cell at DCIT (Delhi High Court Cell), Lawyer's Chamber, Block No. 1, Room No. 428 & 429, Delhi, High Court, New Delhi, **Reserve Bank of India**, **Securities and Exchange Board of India (SEBI),**

National Stock Exchange Limited (NSE), Bombay Stock Exchange Limited (BSE), and to such other sectoral regulators as may be applicable. The Notices to Income Tax authorities shall disclose sufficient details like PAN Card numbers, ward Numbers and assessing officers so that timely and proper reply may be filled.

24. Accordingly, CA(CAA)-01(PB)/ 2021 stands **allowed** and **disposed of.**

The application stands allowed in the aforesaid terms.

- Sd -

(HEMANT KUMAR SARANGI)
MEMBER (TECHNICAL)

- Sd -

(BHASKARA PANTULA MOHAN)
MEMBER(JUDICIAL)